

When the Molecule Gets Ahead of the Law

Delegate of Indonesia on the race to regulate new psychoactive substances, strengthen intelligence sharing and protect legitimate research.



*Delegate of Indonesia (left) being interviewed by an International Press Journalist (right)
Source: IP Photojournalist, UNCND*

Q1: [Journalist]: There are 95 NPS in Indonesia. According to the Delegate of Indonesia, what is the greatest vulnerability of the international system, which allows new psychoactive substances to become available quicker than governments can regulate them?

Delegate of Indonesia: We think that the greatest vulnerability of the international system is not treaties themselves but inefficiency in scheduling caused by the delay in gathering information about harmful effects. We think it should be solved through the development of early warning systems and intelligence sharing.

Q2: [Journalist]: Though possessing one of the most restrictive drug laws in the world, Indonesia seized 2.6 tons of liquid methamphetamine in the latest maritime seizure. Does this mean that the punishments are in step with the sophistication of smuggling networks, or should there be more emphasis on intelligence?

Delegate of Indonesia: Intelligence sharing and respect for the sovereign authority are key elements in overcoming the problem of narcotics. We think it shows the necessity for increasing efficiency in pre-existing systems and agreements, not the necessity for changing them.

Q3: [Journalist]: How can Indonesia protect against the introduction of hazardous NPS into legitimate supply chains employed by scientists and public health authorities without overburdening them?

Delegation of Indonesia: We already have the substance-by-substance scheduling regime, which is being modernised by our BNN with the substantial involvement of experts. It allows us to target only the actual threats without wasting resources on safe substances. Besides, the principle of legality in Indonesian criminal law allows us to adopt a balanced approach to scheduling.

Q4: [Journalist]: The traffickers produce new substances to bypass existing regimes of control. Therefore, new compounds appear faster than they are scheduled. Would Indonesia gain anything from shifting to the class-based regime of prohibition from the substance-to-substance prohibition?

Delegation of Indonesia: In this case, we need further evidence and discussions to consider even endorsing the shift from the substance-to-substance prohibition regime, taking into account that, due to our domestic legislation, we would not be able to enforce such a shift.

Q5: [Reporter]: Indonesia has always been strict in its stance with regard to drugs and laws surrounding them. If the synthetic drug industry continues to get more advanced with all these measures, would Indonesia re-evaluate its drug policy?

Delegate of Indonesia: The reason why we take such an unforgiving stance against narcotics and have the death penalty as a punishment for smugglers and syndicates, who usually exploit drug addicts and other people and never use the drug themselves with the few exceptions, is because they create a criminal activity threatening Indonesia's future generation and the country itself, its sovereignty and the resources of the nation, thus deserving such a punishment. In the case of drug addicts, our BNN takes care of rehabilitation.